

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lauren Kerstein	Team: Squad #07	CCRB Case #: 201500434	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 01/09/2015 7:38 PM	Location of Incident: 43rd Precinct.	18 Mo. SOL 7/9/2016	Precinct: 43
Date/Time CV Reported Tue, 01/20/2015 3:14 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/21/2015 3:14 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Nestor Beaume	31447	932310	043 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Nestor Beaume	Abuse: PO Nestor Beaume did not obtain medical treatment for § 87(2)(b) [REDACTED]	A . Unsubstantiated

Case Summary

On January 9, 2015, at approximately 7:38 p.m., § 87(2)(b) was arrested. Upon arrival at the 43rd Precinct stationhouse, § 87(2)(b) allegedly requested medical treatment from PO Nestor Beaume, as he was experiencing wrist pain caused by his handcuffs (**Allegation A**). While in custody, § 87(2)(b) never received medical treatment. He later went to § 87(2)(b) in the Bronx after he was released.

Mediation, Civil and Criminal Histories

A Notice of Claim inquiry was submitted on March 9, 2015, the results of which will be forwarded upon receipt (encl. J3). § 87(2)(b)'s case was deemed unsuitable for mediation. § 87(2)(b)

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) (encl. A2).
- PO Beaume has been a member of the service for eleven years, and has been the subject of one other complaint for which the allegations are still pending investigation (encl. A1).

Findings and Recommendations

§ 87(2)(g)

Explanation of Subject Officer Identification

- § 87(2)(b) identified PO Beaume by name and picked him out in a photo array (encl. F1-F2) and PO Beaume acknowledged interacting with § 87(2)(b) (encl. E1-E13, H1-H7).

Allegation A: Force – PO Nestor Beaume did not obtain medical treatment for § 87(2)(b)

It is undisputed that PO Beaume did not obtain medical treatment for § 87(2)(b). § 87(2)(b) alleged that while in the 43rd Precinct stationhouse, he requested medical treatment from PO Beaume, while PO Beaume denied that § 87(2)(b) asked him for medical treatment (encl. E1-E13, H1-H7).

When he made the request, § 87(2)(b) stated that the only other person present, civilian or officer, was his supervisor, § 87(2)(b). § 87(2)(b) acknowledged his presence at the precinct although denied hearing § 87(2)(b) request medical treatment as he was thirty feet away from § 87(2)(b) (encl. G2).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Pod: ____7____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date